

In light of the Court's ruling on Defendant's motion to quash service of the summons and complaint, the Court deems Defendant's demurrer moot. (*McClatchy v. Coblenz, Patch Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 375.)

**12. 9:00 AM CASE NUMBER: C25-02647**  
**CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO**  
**HEARING IN RE: MOTION FOR STATUS CONFERENCE**  
**FILED BY:**

**\*TENTATIVE RULING:\***

Plaintiff requests a status conference. The unopposed request is granted. Parties to appear for status conference.

**13. 9:00 AM CASE NUMBER: C25-02933**  
**CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD**  
**\*HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**  
**FILED BY: WALIA, SANDEEP, MD**

**\*TENTATIVE RULING:\***

Before the Court is Defendant Sandeep Walia, M.D. ("Defendant" or "Walia")'s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant